

**MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.**

No. MahaRERA/VH/WARRANT/08/05/2023.

Date: 22nd May 2023.

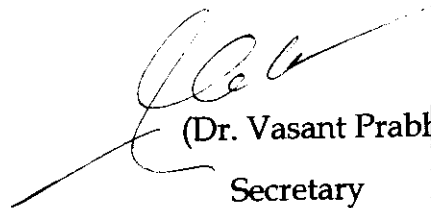
To,
The Collector, Thane
Collector Office, Court Naka,
Thane (West), Maharashtra 400601

Sub: Execution of the warrant under Section 40(1) of RERA in Complaint No. CC006000000192232 filed by **Vaishali Himanshu Khot & Himanshu Khot Vs. Nirmal Lifestyle (Kalyan) Private Limited** in Project No. **P51700003540.**

Sir,

I am forwarding the recovery warrant under Section 40 (1) of RERA & for its execution. You are requested to look into the matter personally and get the warrant executed at the earliest. On realization of the amount, you are requested to inform us.

Yours faithfully,


(Dr. Vasant Prabhu)
Secretary

MahaRERA, Mumbai.

Encl.: Warrant with
necessary papers.

Details of the attachable assets to be required u/s 17/2 of Maharashtra Realization of Land Revenue Rules 1967. When the Revenue Recovery Certificate is under the provision of Revenue Recovery Act 1890.

No. MahaRERA/VH/WARRANT/08/05/2023.

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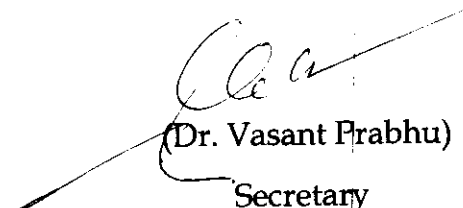
1.	Name and address of the firm: -	Vaishali Himanshu Khot Himanshu Khot SNA Charteredds, 31 Madhuban, 30 Off Mahakali Caves Road, Andheri East, Near Paper Box House, Mumbai Suburban - 400093. Mobile No.- +91- 9930062000 Email ID: - anil.mumbai@gmail.com
2.	The sum to be recovered.	Refund of the amount paid by the complainant along with interest and further applicable interest till full refund of the amount to the complainant.
3.	The provision of law under which the R.R.C. is sent to recover the sum as in arrears of Land Revenue.	Recovery warrant u/s 40(1) of Real Estate (Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeals, etc.) Rules, 2017.

4.	No. & Date of order under which amount is ordered to be recovered.	Complaint No.: CC006000000192232 Final Order dated: 26 th February 2021
5.	Full name and address of the defaulter with name of the building, room no., road name, village name/town, taluka, Dist. Pin Code No.	Nirmal Lifestyle (Kalyan) Private Limited 3RD FLOOR, MULTIPLEX BUILDING, LBS MARG, MULUND WEST, NIRMAL MALL, Mumbai Suburban - 400080. Rajeev Jain - Authorised Signatory 1901, Takshashila, Mulund Goregaon Link Road, Nirmal Nagar, Mulund West, Mumbai - 400080. Details of Contact Person: Ashok Dalwani - COO Mobile No.- +91- 9004465472 Email ID: - zone2kalyan@nirmallifestyle.com
6.	Full details of the property of defaulter against which the process may be executed.	The flat bearing no. B-503 in the Project known as "Lifestyle City Kalyan-Platano B" situated at Plot Bearing No / CTS no / Survey Number/Final Plot no. 70/1 part, 70/3 part at Kalyan, Dist. Thane - 421301. a) Housing project which is duly registered under the RERA Act bearing Registration No.

		P51700003540. b) Other apartments which are still not booked. Note: Land on which the project is being implemented, apartments that are already booked with other allottees should not be attached so that the project can be completed.
7.	Immovable property: a) Name of the building House/Building. b) Room No. c) Name of the village/town d) Road name/gally name e) Sr. No./ II No. of the property f) Area of the property in square meters g) CTS No. of the property area of the property.	c) If by attaching the property mentioned in 6 above still arrears remain, then the properties/offices or any other movable or immovable properties of the defaulters be attached and auctioned. In order to ascertain unsold inventory and other properties of defaulters, you may adopt the procedure similar to which laid down under Order 21 Rule 41 CPC – namely to examine the judgement debtor to disclose his property and produce its property card, failing which he can be sent to jail for 3 months.

Mumbai

Date: 22nd May 2023


 (Dr. Vasant Prabhu)
 Secretary
 MahaRERA, Mumbai

**MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.**

No. MahaRERA/VH/WARRANT/08/05/2023.

Date: 22nd May 2023.

Recovery Warrant U/s. 40(1) of Real Estate

(Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeal, etc.) Rules, 2017.

Complaint No.: CC006000000192232

Project No: P51700003540

Vaishali Himanshu Khot

Himanshu Khot

--- Complainants.

Versus

Nirmal Lifestyle (Kalyan) Private Limited

--- Respondents.

To,

The Collector, Thane

Collector Office, Court Naka,

Thane (West), Maharashtra 400601

Whereas the above-named complainant has filed the above complaint No. **CC006000000192232**, and the Authority/Adjudicating Officer passed the enclosed order directing the respondent to refund the amount paid by the complainant along with interest excluding the taxes paid by the complainant.

And whereas the respondent has failed to comply with the order.

And whereas the amount ordered is recoverable from the respondents as an arrears of land revenue by virtue of Section 40(1) of Real Estate (Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeal, etc.) Rules, 2017.

You are hereby directed to recover the ordered amount from the respondent as the arrears of land revenue and pay it to the complainant and report the compliance.

The necessary information is:

1) Name of complainant with his address:

Vaishali Himanshu Khot

Himanshu Khot

SNA Charteredds, 31 Madhuban, 30 Off Mahakali Caves Road, Andheri East, Near Paper Box House, Mumbai Suburban - 400093.

Mobile No.- +91- 9930062000

Email ID: - anil.mumbai@gmail.com

2) Name of respondents/promoters/directors/partners

Nirmal Lifestyle (Kalyan) Private Limited

3RD FLOOR, MULTIPLEX BUILDING, LBS MARG, MULUND WEST,
NIRMAL MALL, Mumbai Suburban - 400080.

Rajeev Jain - Authorised Signatory

1901, Takshashila, Mulund Goregaon Link Road, Nirmal Nagar, Mulund West, Mumbai - 400080.

3) Details of Contact Person:

Ashok Dalwani - COO

Mobile No.- +91- 9004465472

Email ID: - zone2kalyan@nirmallifestyle.com

3. **Name of the project & its location:**

The flat bearing no. B-503 in the Project known as "Lifestyle City Kalyan- Platano B" situated at Plot Bearing No / CTS no / Survey Number/Final Plot no. 70/1 part, 70/3 part at Kalyan, Dist. Thane - 421301.

- a) Housing project which is duly registered under the RERA Act bearing Registration No. P51700003540.
- b) Other apartments which are still not booked.

Note: Land on which the project is being implemented, apartments that are already booked with other allottees should not be attached so that the project can be completed.

4) **Particulars of immovable property and any other movable and immovable property:**

- a) If by attaching the property mentioned in 3 above still arrears remain, then the properties/offices or any other movable or immovable properties of the defaulters be attached and auctioned. In order to ascertain unsold inventory and other properties of defaulters, you may adopt the procedure similar to which laid down under Order 21 Rule 41 CPC - namely to examine the judgement debtor to disclose his property and produce its property card, failing which he can be sent to jail for 3 months.

5) Amount to be refunded:

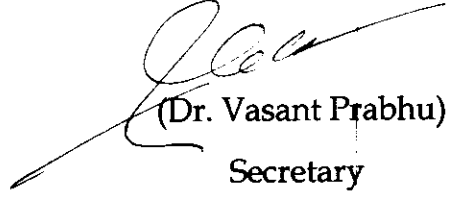
Refund of the amount paid by the complainant along with interest and further applicable interest till full refund of the amount to the complainant.

6) Enclosures:

- i) Final order dated. 26th February 2021.
- ii) Order of Non-compliance dated 7th January 2022.
- iii) Calculation submitted by the complainant.

Mumbai

Date: 22nd May 2023



(Dr. Vasant Prabhu)
Secretary

MahaRERA, Mumbai

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY
AUTHORITY, MUMBAI
NON-COMPLIANCE APPLICATION**

In

COMPLAINT NO: CC006000000192232

Vaishali Himanshu Khot

Himanshu Khot

.... Complainants

Versus

Nirmal Lifestyle Kalyan Pvt Ltd

.... Respondent

MahaRERA Registration No. P51700003540

Coram: Dr. Vasant Prabhu, Secretary, MahaRERA

Adv. Anil Dsouza appeared for the Complainants.

None appeared for the Respondent.

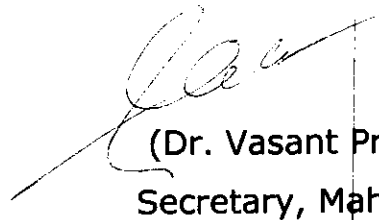
Order

7th January 2022

(Through Video Conferencing)

1. The complainant above named has filed the present application for non-compliance of the MahaRERA Order dated 26/02/2021 issued in the above Complaint No: CC006000000192232 (hereinafter referred to as the said complaint), by the Respondent.
2. In the said complaint filed by the Complainant, the respondent was directed to refund the amount paid by the complainant along with interest excluding the taxes paid by the complainant.
3. On the said non-compliance applications, the hearing was held through video conferencing as per the MahaRERA Circular no. 27/2020 and MahaRERA Order No. 15/2020.

4. During the hearing, the complainant submitted that the respondent has failed to comply with the order of MahaRERA till date and the refund of the amount is still not paid to the complainant. The complainant therefore sought issuance of warrant against the respondent under section 40(1) of the RERA.
5. The respondent did not appear for the hearing even though the notice of hearing was duly served upon it.
6. After hearing the arguments of the Complainant, it is pertinent to note that the Respondent has failed to refund the amount paid by him, and has also not paid the interest as directed in the said order. Hence the Complainant is entitled to seek issuance of a warrant. Hence, any further time granted to the Respondent would lead to injustice to the Complainant.
7. Therefore, the MahaRERA has no alternative but to proceed with action under section 40 (1) of RERA against the Respondent. It is therefore, directed to issue recovery warrant under section 40(1) of RERA read along with Rule 3 of the Maharashtra Real Estate (Regulation & development) (Recovery of Interest, Penalty, Compensation, Fine Payable, Forms of Complaint & Appeals etc.) rules, 2017, against the booked flat in the said project of the Respondent.
8. In view of the above, the application of non-compliance stands disposed of.


(Dr. Vasant Prabhu)
Secretary, MahaRERA